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United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Rule 8 Motion Omitting District Relief and Impracticability

Filed February 2, 2026

The City of Norvale moves under Federal Rule of Appellate Procedure 8(a)(2) for a stay pending appeal of the preliminary injunction entered January 23, 2026. The injunction prevents the City from applying Ordinance N-2025-18 to the Piedmont Booksellers Guild's announced book fairs at Cedar Commons while the civil action remains pending. The City asks for prompt relief before planning for the February 14 fair is fixed.

A stay is warranted under *Nken v. Holder*, 556 U.S. 418, 433–35 (2009). The ordinance is content neutral, uses compensation as an objective sign of a scheduled presentation, and directs officials to documented crowd, traffic, emergency, sanitation, competing-use, and municipal-resource concerns. The injunction removes an adopted coordinating process during an active calendar while leaving employees uncertain which information they may request.

The requested stay would restore the ordinance only during this interlocutory appeal. Norvale offers interim safeguards: general topic descriptions will suffice, viewpoint will not be considered, material conditions will be stated in writing, and a speaker substitution that leaves time, format, equipment, location, and expected attendance unchanged will receive expedited review. Those limitations protect the Guild's continuing programs while preserving orderly administration of shared public property.

The Order Under Review

The Guild is a nonprofit association whose members conduct recurring, free-to-attend book fairs. Sellers offer books from temporary tables, and authors receive modest honoraria for scheduled readings, discussions, and audience questions. The City does not contend that payment removes constitutional protection. It contends that a planned compensated appearance is a reliable, neutral event feature that permits advance coordination without asking officials to predict which ideas will attract listeners.

Ordinance N-2025-18 requires an application forty-five days before each covered event. The organizer identifies paid speakers, gives a short topic and time, supplies site and attendance information, and pays a \$240 event charge plus \$45 for each paid presenter. A decision must rest on identified operational risks and be explained in writing. The enactment forbids viewpoint discrimination and permits a topic such as “novelist reading and questions.”

The January 23 order restrains enforcement of the ordinance against six announced 2026 fairs. It nevertheless preserves neutral authority concerning reservations, capacity, traffic, emergency access, sanitation, physical layout, competing uses, and materially changed conditions. The City maintains that the line between prohibited ordinance administration and preserved general administration is too uncertain for employees planning an approaching event.

This appeal falls within 28 U.S.C. § 1292(a)(1) because the challenged order grants preliminary injunctive relief. The complaint has not been finally decided. The requested suspension concerns only the interim rules governing the announced events and would not determine permanent relief, damages, or the validity of every future application.

Likelihood of Success on Narrow Tailoring

The district court accepted that Norvale has substantial interests in pedestrian flow, vehicle circulation, emergency access, sanitation, compatible reservations, and staffing. It also found no content or viewpoint discrimination. The City is likely to show that the court nevertheless demanded a closer correspondence between the ordinance's trigger and each operational risk than a content-neutral time, place, and manner regulation requires.

Compensation does not itself create congestion. It does, however, identify a presentation that an organizer has arranged, placed on its program, and agreed to support. That feature distinguishes a planned gathering from spontaneous conversation at a bookseller's table without requiring staff to evaluate subject matter or anticipated popularity. Names, times, general topics, formats, and equipment needs allow employees to compare simultaneous uses and prepare for audience transitions.

The record describes a compact park bordered by transit stops, a loading lane, a crosswalk, and a service entrance. Even peaceful literary events can temporarily narrow a walkway, delay unloading, or concentrate listeners near a route that must remain open. A preventive system need not await a dangerous incident before requesting useful information. Nor must a city select the least restrictive proposal among every plausible alternative.

The injunction treated direct attendance and site information as adequate substitutes for the paid-presentation trigger. Attendance estimates can be uncertain, and an event-wide total may not show when people will gather or move. The ordinance combines its objective trigger with direct operational fields. That integrated design is reasonably fitted to planning and presents a substantial prospect of reversal.

Disclosure, Amendments, and Fees

The required speaker name and general topic serve identification and scheduling functions. The form does not request a script, ideology, affiliation, or position on public affairs. A speaker's name lets the organizer and City discuss a replacement accurately; a short topic helps distinguish a reading, panel, demonstration, or signing without authorizing a judgment about literary merit. Written reasons constrain any condition or denial.

The Guild emphasizes that some authors confirm within forty-five days of a fair. The ordinance permits requests to amend an application, although it does not guarantee every change. That qualification is reasonable because a replacement can alter attendance, equipment, duration, or use of the site. Norvale will decide a same-slot substitution promptly and will not reject it merely because the author's identity or subject differs when the operational facts remain materially constant.

The \$240 event amount covers intake, routing, site comparison, departmental coordination, and preparation of a written decision. The \$45 increment accounts for review of another scheduled presentation and its transition period. Fixed schedules necessarily average files requiring different amounts of work. Nothing in the present evidence shows that receipts fund unrelated programs or vary according to viewpoint.

For a six-author event, the charge is \$510. The City recognizes that amount affects a small nonprofit, but financial effect alone does not establish that an administrative fee is unconstitutional. As an interim alternative, the Court may suspend the per-speaker increment while allowing the schedule and operational fields to function. That narrower course would address the immediate economic concern without eliminating advance coordination.

Specificity and Security

Federal Rule of Civil Procedure 65(d) requires an injunction to state its terms specifically and describe in reasonable detail the acts restrained. The operative command bars the City from “enforcing” the Paid-Speaker Permit Ordinance but preserves broad categories of neutral regulation. Ordinance N-2025-18 contains timing, logistical, fee, disclosure, written-reason, recordkeeping, and conditioning provisions. The order does not identify which provisions remain usable when they overlap with the preserved subjects.

An employee cannot confidently determine whether a speaker's name may be requested for a schedule, whether the same question is forbidden only when it appears on Form PS-1, or whether a late change is material enough for review. The accompanying reasoning provides context, but persons subject to contempt should not have to reconstruct the operative boundary from discussion outside the command. The City has a strong prospect of obtaining correction under Rule 65(d).

The order also took effect without setting security or expressly determining that no security was appropriate. Rule 65(c) requires an exercise of discretion concerning costs and damages sustained by a party later found to have been wrongfully enjoined. Administrative work and foregone scheduled charges were identified, even if a large bond would be inappropriate in a speech case. Silence does not show that the court considered those risks.

These defects support interim relief from the order as entered. At minimum, this Court should suspend uncertain portions long enough for a precise command and an explained security decision. That limited action would not prejudice whether the Guild ultimately deserves some form of preliminary protection.

Irreparable Injury to the City

Event planning occurs before the public enters Cedar Commons. Employees compare reservations, identify loading windows, preserve the service route, coordinate with transit operations, and determine whether ordinary staffing is sufficient. If the opportunity to make those arrangements passes under an uncertain injunction, a later favorable decision cannot recreate the lost planning interval for the February fair or restore consistent treatment among organizers.

The City does not predict violence and does not rely principally on lost fees. Its asserted injury is the displacement of a uniform prospective system at a shared municipal site. One employee may omit a legitimate question because it appears in the restrained ordinance. Another may ask the same question under a general park rule. That inconsistency burdens administration and increases the chance of either an avoidable site problem or a contempt dispute.

The event history illustrates manageable but real concerns. Listener movement has narrowed the central path after readings, vendor unloading has briefly affected the curb, seller materials have approached the service corridor, and two minor medical calls have required access. Those facts do not make the Guild dangerous. They explain why clear preparation before a recurring event matters even when participants are peaceful and cooperative.

Norvale's proposed safeguards reduce uncertainty without licensing censorship. Staff will use only operational criteria, record material conditions, and respond promptly to substitutions. Once the February planning decisions are missed, however, those protections cannot restore the City's opportunity to coordinate the date. The injury is therefore practical, institutional, and irreparable for purposes of interim review.

Harm to the Guild and the Equities

The City acknowledges that a stay may affect invitations, honoraria, advertising, travel, and seller participation. A lost author appearance is not fully compensable, and uncertainty can discourage programming before an application is formally denied. Those concerns deserve concrete protection in any temporary order. They do not require leaving the ordinance wholly unavailable while appellate review proceeds.

The Guild may continue its free literary programs under the requested stay. Norvale will accept general descriptions, will not evaluate ideas, and will expedite an amendment that keeps the same time, place, format, equipment, and expected attendance. It will provide written reasons for any operational condition and preserve permit communications. Immediate judicial review remains available if a particular decision threatens an appearance.

The injunction already recognizes that the City may enforce neutral rules governing capacity, traffic, sanitation, emergency access, layout, reservations, and material changes. The dispute therefore concerns the form and timing of coordination rather than whether coordination may occur. A defined temporary process is more equitable than asking employees and organizers to guess which overlapping authority controls.

If the Court concludes that full restoration would impose excessive economic pressure, it can leave the \$45 speaker assessment suspended while permitting the remaining informational and scheduling provisions. It also can forbid rejection of a speaker-only substitution absent a documented operational difference. Those terms would preserve the Guild's program and budget interests while allowing meaningful planning. The balance of harms supports at least that limited relief during an expedited appeal.

Public Interest and Relief Requested

The public benefits from free readings and discussions at Cedar Commons. It also depends on unobstructed walkways, transit access, reliable loading practices, sanitation, and an available service route. These interests are complementary. A neutral planning process can protect access while expressly excluding viewpoint and literary judgment from municipal decision-making.

The City asks the Court to stay the January 23 preliminary injunction pending disposition of this appeal. During the stay, Norvale will accept a general topic, give expedited written decisions on substitutions, base every condition on documented operational facts, and refrain from collecting retroactive amounts for conduct undertaken under a controlling court order. The City also asks for accelerated consideration before the February 14 fair.

As narrower relief, the City requests permission to administer the application's schedule, identity, format, equipment, expected-attendance, site, and update provisions while the per-speaker charge remains suspended. A replacement preserving the relevant operational features would be accepted unless the City states a materially different risk in writing. The order should specify its duration and confirm that it does not resolve permanent liability.

The materials supplied include the ordinance, declarations, site documents, stipulated facts, hearing transcript, preliminary-injunction opinion and order, notice of appeal, and relevant docket entries. Counsel notified the Guild before filing; the Guild opposes the requested stay. Electronic service was completed on February 2, 2026. For the reasons stated, the Court should grant full or partial interim relief and set an expedited schedule.

Respectfully submitted by Municipal Appellate Counsel for the City of Norvale.